

The Andhra Pradesh Village Police Act, 1974

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State of Andhra Pradesh - Act

The Andhra Pradesh Village Police Act, 1974

ANDHRA PRADESH

India

The Andhra Pradesh Village Police Act, 1974

Act 24 of 1974

Published in Gazette 24 on 29 August 1974

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The Andhra Pradesh Village Police Act, 1974

[29th August, 1974]

No. 31 of 1974

An Act to consolidate and amend the law relating to the establishment of the system of village police in the State of Andhra Pradesh.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Twenty-fifty Year of the Republic of India, as follows.?

1.

Short title, extent and commencement.?

(1)

This Act may be called the Andhra Pradesh Village Police Act, 1974.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall come into force on such date as the State Government may, by notification in the Andhra Pradesh Gazette, appoint.

2.

Definitions.?

In this Act , unless the context otherwise requires?

(1)

?cattle? includes all horned cattle, elephants, camels, horses, asses, mules, sheep, goats and swine;

(2)

?Government? means the State Government;

(3)

?notification? means the notification published in the Andhra Pradesh Gazette, and the words ?notified? shall be construed accordingly;

(4)

?police officer? means any member of the police force appointed or deemed to be appointed under any law relating to the police force for the time being in force in the State; and includes a special police officer;

(5)

?prescribed? means prescribed by rules made under this Act;

(6)

?village? means any local area which is recognised as a revenue village in the revenue accounts of the Government;

(7)

?village police officer? means the head of a village, by whatever designation locally known, who is appointed as the head of the village police and Section 3.

3.

Appointment of village police and its head.?

For the purposes of this Act , the District Magistrate or any officer authorised by him in this behalf may appoint, one or more village servants as village police for each village, and the police patel, village headman, village munsif, triune officer or other head of the village by whatever designation locally known, as the head of the village police of that village.

4.

Administration of village police.?

The administration of the village police in each district shall vest in the District Magistrate, who may delegate any of his powers and functions relating to such administration to a subordinate Executive Magistrate within whose local jurisdiction the village is situated.

5.

Duties of village police officer.?

Every village police officer shall?

(a)

reciprocally communicate all information regarding any offence committed or any gang of robbers or strangers of suspicious appearance having entered or taken refuge in the village;

(b)

report promptly to the nearest Executive Magistrate having jurisdiction over the village and to the police officer in charge of the nearest police station,?

(i)

the matters specified in Clause (a),

(ii)

all offences committed in the village, and

(iii)

all matters connected with public peace and tranquility:

- (c) afford such assistance and facility as may be necessary or required by an police officer in the discharge of his duty;
- (d) obey and execute all lawful orders issued to him by the concerned Executive Magistrate or the police officer;
- (e) prevent, to the best of his ability, the commission of any offence or public nuisance within the limits of the village; and
- (f) take measures consistent with law to bring offenders to justice.

6.
Authority of the village police officer over other Village Officers and servants.?

The village police officer shall have authority to require the Karnam and any village servant to aid him in the discharge of his duties under this Act .

7.
Action as to stolen property.?

Where the village police officer is informed that stolen property is being concealed and where he has reason to apprehend that the stolen property may be made away with unless prompt measures are taken to secure it, he shall cause search to be made in the prescribed manner and secure and forward the property, if found, along with the offender to the police officer in charge of the nearest police station.

8.
Preservation in tact of scene of offence.?

The village police officer shall Endeavour to the best of his ability to preserve intact scene of offence and finger and foot prints in case of murder, house-breaking, robbery, dacoity, rioting, accidental death or suicide until the police officer concerned arrives on the scene for investigation.

9.
Village police officer to take charge of unclaimed property.?

The village police officer shall take charge of all the unclaimed property found within the limits of the village or delivered to him lawfully and shall forthwith forward all such property to the police officer incharge of the nearest police station for disposal in accordance with law.

10.
Accident to aircraft.?

On the occurrence of an accident to an aircraft, the village police officer shall at once report the matter to the Executive Magistrate having jurisdiction over the area and to the police officer incharge of the nearest police station and if any person is injured as a result of such accident, the village police officer shall forthwith report the matter to the nearest medical officer. He shall also take such further act ion as may be prescribed.

11.
Penalty for neglect of duty, etc..?

Any village police officer, village police, or other village officer or servant liable to be requisitioned for the purpose of police duties under this Act , who shall be guilty of neglect or violation of duty imposed by or under this Act or wilful breach of any rule or order made by a competent authority under this Act , shall be punished with imprisonment for a term which may extend to three months, or with fine which may extend to one hundred rupees, or with both.

12.
Power to make rules.?

(1)
The Government may, by notification, make rules for carrying out all or any of the purposes of this Act .

(2)
Every rule made under this Act, shall, immediately after it is made, be laid before each House of the State Legislature if it is in session and if it is not in session, in the session immediately following, for a total period of fourteen days which may be comprised in one session, or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the rule or in the annulment of the rule, the rule shall from the date on which the modification or annulment is notified, have effect only in such modified form, or shall stand annulled, as the case may be, so however that any such modification or annulment

shall be without prejudice to the validity of anything previously done under that rule.

13.

Repeal.?

The Andhra Pradesh (Andhra Area) Village Police Regulation, 1816, and the Andhra Pradesh (Andhra Area) Village Police Regulation, 1821 are hereby repealed.

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